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CHAPTER 12

INTELLECTUAL PROPERTY

SECTION A

GENERAL PROVISIONS

Article 12.1

Objectives

1. The objectives of this Chapter are to:
 - (a) promote cooperation on the protection and enforcement of intellectual property rights;
 - (b) achieve an adequate and effective level of protection and enforcement of intellectual property rights;
 - (c) promote the production and commercialisation of innovative and creative products in each Party; and
 - (d) promote and govern trade between the Parties, as well as reduce distortions and impediments to such trade.
2. The protection and enforcement of intellectual property rights should contribute to the promotion of technological innovation and to the transfer and dissemination of technology, to the mutual advantage of producers and users of technological knowledge and in a manner conducive to social and economic welfare, and to balance of rights and obligations pursuant to Article 7 of the TRIPS Agreement.

Article 12.2

Nature and scope of obligations

1. This Chapter shall complement and further specify the rights and obligations of the Parties under the TRIPS Agreement and other international treaties in the field of intellectual property, to which they are parties.
2. For the purposes of this Chapter, “intellectual property” means at least all categories of intellectual property as referred to by the TRIPS Agreement that are the subject of Sub-Section 1 (Copyright and Related Rights) to Sub-Section 7 (Plant Varieties) of Section B (Standards Concerning Intellectual Property Rights). The “protection of intellectual

property” includes protection against unfair competition as referred to in Article 10bis of the Paris Convention for the Protection of Industrial Property of 20 March 1883, as last revised at Stockholm on 14 July 1967 (hereinafter referred to as the “Paris Convention”).

3. This Chapter does not preclude a Party from applying laws and regulations introducing higher standards for the protection and enforcement of intellectual property rights than those required by this Chapter, provided that they do not contravene the provisions of this Chapter. The Parties Each Party shall determine the appropriate method of implementing the provisions of this Chapter within their own legal systems and policies.

Article 12.3

TRIPS Agreement and public health

1. The Parties recognise the importance of the Declaration on the TRIPS Agreement and Public Health, adopted on 14 November 2001 by the Ministerial Conference of the WTO at Doha (the "Doha Declaration"). In interpreting and implementing the rights and obligations under this Chapter, each Party shall ensure consistency with the Doha Declaration.
2. Nothing in this Chapter shall limit a Party's rights and obligations pursuant to Article 31 and Article 31bis of the TRIPS Agreement, and the Annex and the Appendix to the Annex to the TRIPS Agreement.

Article 12.4

Exhaustion

Each Party shall be free to establish its own regime for exhaustion of intellectual property rights.

Article 12.5

National treatment

1. In respect of all categories of intellectual property covered by this Chapter, each Party shall accord to the nationals of the other Party treatment no less favourable than it accords to its own nationals with regard to the protection of intellectual property rights, subject to the exceptions provided in, respectively, the Paris Convention, the Berne Convention for the Protection of Literary and Artistic Works of 9 September 1886, as last revised at Paris on 24 July 1971 (hereinafter referred to as the “Berne Convention”), the International Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organisations, done at Rome on 26 October 1961 (hereinafter referred to as the “Rome Convention”), or the Treaty on Intellectual Property in Respect of Integrated Circuits, done at Washington, D.C., on May 26, 1989. In respect of performers, producers of phonograms and broadcasting organisations, this obligation only applies in respect of the rights provided under this Agreement.

2. A Party may avail itself of the exceptions permitted under paragraph 1 in relation to its judicial and administrative procedures, including requiring a national of the other Party to designate an address for service of process in its territory, or to appoint an agent in its territory, provided that such derogation is:
 - (a) necessary to secure compliance with laws or regulations that are not inconsistent with this Chapter; and
 - (b) not applied in a manner that would constitute a disguised restriction on trade.
3. Paragraph 1 and 2 do not apply to procedures provided in multilateral agreements concluded under the auspices of World Intellectual Property Organisation (hereinafter referred to as “WIPO”) relating to the acquisition or maintenance of intellectual property rights.

Article 12.6

Genetic resources, traditional knowledge and traditional cultural expressions

1. The Parties recognise the importance and value of genetic resources and associated traditional knowledge.
2. The Parties acknowledge that the disclosure of the origin or source of genetic resources and associated traditional knowledge in patent applications may promote the transparency of the patent system with regard to genetic resources and associated traditional knowledge.
3. The Parties affirm the importance of working towards a multilateral outcome on intellectual property related aspects of genetic resources and associated traditional knowledge and of the work carried out on traditional knowledge and traditional cultural expressions by the WIPO Intergovernmental Committee on Intellectual Property and Genetic Resources, Traditional Knowledge and Folklore.

Article 12.7

Transfer of technology

The Parties agree to exchange views and information on their law and international practices on the protection and enforcement of intellectual property rights, regarding transfer of technology. This shall in particular include exchanges on measures to facilitate information flows, business partnerships, and voluntary licensing and subcontracting agreements. Particular attention shall be paid to the conditions necessary to create an adequate enabling environment for technology transfer in the host countries, including issues such as the domestic legal framework and the development of human capital.

Article 12.8

International agreements

1. The Parties Each Party shall comply with their commitments under the following international agreements:
 - (a) TRIPS Agreement;
 - (b) the WIPO Copyright Treaty, adopted at Geneva on 20 December 1996;
 - (c) the WIPO Performances and Phonograms Treaty, adopted in Geneva on 20 December 1996; and
 - (d) the Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired or Otherwise Print Disabled, adopted at Marrakesh on 28 June 2013.
2. Each Party shall make all reasonable efforts to ratify or accede to the following international agreements:
 - (a) the Beijing Treaty on Audiovisual Performances, adopted at Beijing on 24 June 2012;
 - (b) the Trademark Law Treaty, adopted at Geneva on 27 October 1994 or the Singapore Treaty on the Law of Trademarks, adopted at Singapore on 27 March 2006; and
 - (c) the Geneva Act of the Hague Agreement Concerning the International Registration of Industrial Designs, adopted at Geneva on 2 July 1999.
3. Each Party shall ensure that the procedures provided under the following international agreements are available in its territory:
 - (a) the Patent Cooperation Treaty, done at Washington on 19 June 1970, as amended on 28 September 1979, modified on 3 February 1984 and last modified on 3 October 2001;
 - (b) the Protocol related to the Madrid Agreement concerning the International Registration of Marks, adopted at Madrid on 27 June 1989 as amended on 3 October 2006 and on 12 November 2007.
4. Each Party reaffirms their commitment to other international treaties under the auspices of WIPO to which that Party is a party, including the Convention for the Protection of Literary and Artistic Works, adopted at Berne on 9 September 1886 and amended on 28 September 1979.

SECTION B

STANDARDS CONCERNING INTELLECTUAL PROPERTY RIGHTS

SUB-SECTION 1

Copyright and related rights

Article 12.9

Authors

1. Each Party shall provide for authors to have the exclusive right to authorise or prohibit:
 - (a) the direct or indirect, temporary or permanent reproduction by any means and in any form, in whole or in part, of their works;
 - (b) any form of distribution to the public, by sale or otherwise of the original of their works or of copies thereof;
 - (c) any communication to the public of their works, by wire or wireless means, including the making available to the public of their works in such a way that members of the public may access them from a place and at a time individually chosen by them; and
 - (d) the commercial rental to the public of originals or copies.
2. This Article is without prejudice to Article 12.46 (Persons entitled to apply for the application of the measures, procedures and remedies).

Article 12.10

Performers

1. Each Party shall provide for performers to have the exclusive right to authorise or prohibit:
 - (a) the fixation¹ of their performances;
 - (b) the direct or indirect, temporary or permanent reproduction by any means and in any form, in whole or in part, of fixations of their performances;
 - (c) the distribution to the public, by sale or otherwise, of the fixations of their performances;
 - (d) the making available to the public, by wire or wireless means, of fixations of their performances in such a way that members of the public may access them from a place and at a time individually chosen by them;

¹ The term “fixation” means the embodiment of sounds or images, or of the representations thereof, from which they can be perceived, reproduced or communicated through a device.

- (e) the broadcasting by wireless means and the communication to the public of their performances, except where the performance is itself already a broadcast performance or is made from a fixation; and
 - (f) the commercial rental to the public of the fixation of their performances.
2. This Article is without prejudice to Article 12.46 (Persons entitled to apply for the application of the measures, procedures and remedies).

Article 12.11

Producers of phonograms

1. Each Party shall provide for phonogram producers to have the exclusive right to authorise or prohibit:
- (a) the direct or indirect, temporary or permanent reproduction by any means and in any form, in whole or in part of their phonograms;
 - (b) the distribution to the public, by sale or otherwise, of their phonograms, including copies thereof;
 - (c) the making available to the public, by wire or wireless means, of their phonograms in such a way that members of the public may access them from a place and at a time individually chosen by them; and
 - (d) the commercial rental of their phonograms to the public.
2. This Article is without prejudice to Article 12.46 (Persons entitled to apply for the application of the measures, procedures and remedies).

Article 12.12

Broadcasting organisations

1. Each Party shall provide broadcasting organisations with the exclusive right to authorise or prohibit:
- (a) the fixation of their broadcasts, whether these broadcasts are transmitted by wire or over the air²;
 - (b) the direct or indirect, temporary or permanent reproduction by any means and in any form, in whole or in part, of fixations of their broadcasts, whether those broadcasts are transmitted by wire or over the air;

² The term “by wire or over the air” includes by cable or satellite

- (c) the making available to the public, by wire or wireless means, of fixations of their broadcasts, whether these broadcasts are transmitted by wire or over the air, in such a way that members of the public may access them from a place and at a time individually chosen by them;
 - (d) the distribution to the public, by sale or otherwise, of fixations, including copies thereof, of their broadcasts, whether these broadcasts are transmitted by wire or over the air; and
 - (e) the rebroadcasting of their broadcasts by wireless means, as well as the communication to the public of their broadcasts if such communication is made in places accessible to the public against payment of an entrance fee.
2. This Article is without prejudice to Article 12.46 (Persons entitled to apply for the application of the measures, procedures and remedies).

Article 12.13

Right to remuneration for broadcasting and communication to the public

1. Each Party shall provide a right in order to ensure that a single equitable remuneration is paid by the user to the performers and producers of phonograms, if a phonogram published for commercial purposes, or a reproduction of such phonogram, is used for broadcasting by wireless means or for any communication to the public.
2. Each Party shall provide that the single equitable remuneration shall be claimed from the user by the performer or by the producer of a phonogram or by both. Each Party may enact legislation that, in the absence of an agreement between performers and producers of phonograms, sets the terms according to which performers and producers of phonograms shall share the single equitable remuneration.

Article 12.14

Term of protection

1. The rights of an author of a literary or artistic work within the meaning of Article 2 of the Berne Convention shall run for the life of the author and for seventy years after his death, irrespective of the date when the work is lawfully made available to the public.
2. The term of protection of a musical composition with words shall expire seventy years after the death of the last of the following persons to survive, whether or not those persons are designated as co-authors: the author of the lyrics and the composer of the musical composition, provided that both contributions were specifically created for the respective musical composition with words.
3. In the case of a work of joint authorship, the term referred to in paragraph 1 shall be calculated from the death of the last surviving author.

4. In the case of anonymous or pseudonymous works, the term of protection shall run for at least fifty years after the work is lawfully made available to the public. However, if the pseudonym adopted by the author leaves no doubt as to their identity, or if the author discloses their identity during the period referred to in the first sentence, the term of protection applicable shall be that laid down in paragraph 1.
5. Where a work is published in volumes, parts, instalments, issues or episodes and the term of protection runs from the time when the work was lawfully made available to the public, the term of protection shall run for each such item separately.
6. Each Party shall provide that the term of protection of cinematographic or audiovisual works shall expire, either:
 - (a) seventy years after the death of the last of the following persons to survive, whether or not these persons are designated as co-authors: the principal director, the author of the screenplay, the author of the dialogue and the composer of music specifically created for use in the cinematographic or audiovisual work, or
 - (b) at least fifty years after the work has been made available to the public with the consent of the author, or, failing such an event within fifty years from the making of such a work, at least fifty years after the making.
7. The rights of broadcasting organisations shall expire at least twenty years after the first transmission of a broadcast, whether that broadcast is transmitted by wire or over the air³.
8. The rights of performers shall expire fifty years after the date of the fixation of the performance. However, if a fixation of the performance in a phonogram is lawfully published or, where provided for by a Party, lawfully communicated to the public, within that period, the term of protection shall expire at least fifty years after the date of the first such publication or, where provided for by a Party, the first such communication to the public; where a Party provides for both possibilities, the term of protection shall be calculated from whichever event occurs earlier.
9. The rights of producers of phonograms shall expire fifty years after the fixation is made. However, if the phonogram has been lawfully published within this period, the said rights shall expire at least fifty years from the date of the first lawful publication. If no lawful publication has taken place within fifty years after the first fixation is made, and if the phonogram has been lawfully communicated to the public within this period the said rights shall expire at least fifty years from the date of the first lawful communication to the public.
10. The terms laid down in this Article shall be calculated from the first day of January of the year following the event.
11. The terms of protection of each Party may exceed the periods provided for in this Article.

Article 12.15

³ The term “by wire or over the air” includes by cable or satellite.

Resale right

1. Each Party shall make all reasonable efforts to provide, for the benefit of the author of works of graphic or plastic art, a “resale right”, defined as an inalienable right, which cannot be waived, even in advance, to receive a percentage of the price obtained from any resale of that work, after the first transfer of that work by the author.
2. The resale right referred to in paragraph 1 shall apply to all acts of resale involving as sellers, buyers or intermediaries art market professionals, such as salesrooms, art galleries and, in general, any dealers in works of art.
3. Each Party may provide that the resale right referred to in paragraph 1 shall not apply to acts of resale where the seller has acquired the work directly from the author less than three years before that resale and where the resale price does not exceed a minimum amount.
4. Each Party shall provide that authors who are nationals of third countries and their successors in title enjoy the resale right in accordance with this Agreement and the legislation of each Party concerned only if legislation in the third country of which the author or their successor in title is a national permits resale right protection in that country for authors from the Party concerned and their successors in title.

Article 12.16

Collective management of rights

1. The Parties shall promote cooperation between their respective collective management organisations for the purposes of fostering the availability of works and other protected subject-matter in the territories of the Parties and the transfer of rights revenue for the use of such works or other protected subject-matter.
2. The Parties agree to promote the transparency of collective management organisations, in particular as regards the rights revenue they collect, deductions they apply to such revenue, the use of the rights revenue collected, the distribution policy and their repertoire.
3. Each Party shall encourage collective management organisations established in its territory and representing another collective management organisation established in the territory of the other Party by way of a representation agreement, to accurately, regularly and diligently pay amounts owed to the represented collective management organisations as well as provide the represented collective management organisation with the information on the amount of rights revenue collected on its behalf and any deductions made to that rights revenue.

Article 12.17

Exceptions and limitations

1. Each Party shall provide for exceptions and limitations to the exclusive rights set out in Articles 12.9 [Authors] to 12.12 [Broadcasting organisations] only in certain special cases which do not conflict with a normal exploitation of the subject matter and do not unreasonably prejudice the legitimate interests of the right holders.
2. Each Party shall provide that temporary acts of reproduction, which are transient or incidental, which are an integral and essential part of a technological process and the sole purpose of which is to enable:
 - (a) a transmission in a network between third parties by an intermediary; or
 - (b) a lawful use;of a work or other subject matter to be made, and which have no independent economic significance, shall be exempted from the reproduction right.

Article 12.18

Protection of technological measures

1. Each Party shall provide adequate legal protection against the circumvention of any effective technological measures in accordance with the laws of the Parties, which the person concerned carries out in the knowledge, or with reasonable grounds to know, that he or she is pursuing that objective.
2. Each Party shall provide adequate legal protection against the manufacture, import, distribution, sale, rental, advertisement for sale or rental, or possession for commercial purposes of devices, products or components or the provision of services which:
 - (a) are promoted, advertised or marketed for the purpose of circumvention of any effective technological measures;
 - (b) have only a limited commercially significant purpose or use other than to circumvent any effective technological measures; or
 - (c) are primarily designed, produced, adapted or performed for the purpose of enabling or facilitation the circumvention of any effective technological measures.

This provision does not limit the judicial authorities of the Parties to evaluate all the circumstances of the case on a case by case basis in accordance with the laws of the Parties.

3. For the purposes of this Article, the term “technological measures” means any technology, device or component that, in the normal course of its operation, is designed to prevent or restrict acts, in respect of works or other subject matter, which are not authorised by the right holder of any copyright or related right as provided for by the law of the Parties. Technological measures are “effective” where the use of a protected work or other subject matter is controlled by the right holder through application of an access control or

protection process, such as encryption, scrambling or other transformation of the work or other subject matter or a copy control mechanism, which achieves the objective of protection.

Article 12.19

Obligations concerning rights management information

1. Each Party shall provide adequate legal protection against any person knowingly performing, without authority, any of the following acts, if such person knows, or has reasonable grounds to know, that by so doing he or she is inducing, enabling, facilitating or concealing an infringement of any copyright or any related rights:
 - (a) the removal or alteration of any electronic rights-management information; or
 - (b) the distribution, importation for distribution, broadcasting, communication or making available to the public of works or other subject matter protected under this Agreement from which electronic rights-management information has been removed or altered without authorisation.
2. For the purposes of this Sub-Section, “rights-management information” means any information provided by right holders which identifies the work or other subject matter referred to in this Chapter, the author or any other right holder, information about the terms and conditions of use of the work or other subject matter, or any numbers or codes that represent such information.
3. Paragraph 2 shall apply if any of these items of information is associated with a copy of, or appears in connection with the communication to the public of, a work or other subject matter referred to in this Chapter.

SUB-SECTION 2

Trademarks

Article 12.20

Rights conferred by a trademark

1. A registered trademark shall confer on the proprietor exclusive rights therein. The proprietor shall be entitled to prevent all third parties not having his consent from using in the course of trade:
 - (a) any sign which is identical with the trademark in relation to goods or services which are identical with those for which the trademark is registered; and
 - (b) any sign where, because of its identity with, or similarity to, the trademark and the identity or similarity of the goods or services covered by the trademark and the sign,

there exists a likelihood of confusion on the part of the public, which includes the likelihood of association between the sign and the trademark.

2. The following, in particular, may be prohibited under paragraph 1:
 - (a) affixing the sign to the goods or to the packaging of those goods;
 - (b) offering the goods, putting them on the market, or stocking them for those purposes under the sign, or offering or supplying services thereunder;
 - (c) importing or exporting the goods under the sign;
 - (d) using the sign as a trade or company name or part of a trade or company name; and
 - (e) using the sign on business papers and in advertising.

Article 12.21

Registration procedure

1. Each Party shall establish a system for the registration of trademarks in which each final refusal decision⁴, including the partial refusal of registration issued by the relevant trademark administration shall be notified in writing, duly reasoned and open to challenge.
2. Each Party shall provide for the possibility to oppose applications to register trademarks or, where appropriate, trademark registrations. Such opposition proceedings shall be adversarial.
3. Each Party shall provide a publicly available electronic database of applications and registrations of trademarks.

Article 12.22

Well-known trademarks

For the purposes of giving effect to the protection of well-known trademarks, as referred to in Article 6bis of the Paris Convention and paragraphs 2 and 3 of Article 16 of the TRIPS Agreement, each Party shall apply the Joint Recommendation Concerning Provisions on the Protection of Well-Known Marks adopted by the Assembly of the Paris Union for the Protection of Industrial Property and the General Assembly of the WIPO at the Thirty-Fourth Series of Meetings of the Assemblies of the Member States of WIPO on 20 to 29 September 1999.

Article 12.23

⁴ Final negative decision

Exceptions to the rights conferred by a trademark

1. Each Party shall provide for limited exceptions to the rights conferred by a trademark such as the fair use of descriptive terms, including geographical indications, as appropriate and may provide other limited exceptions, provided such exceptions take account of the legitimate interests of the owner of the trademark and of third parties.
2. Each Party shall provide that the trademark shall not entitle the proprietor to prohibit a third party from using, in the course of trade:
 - (a) his or her own name or address, where the third party is a natural person;
 - (b) indications concerning the kind, quality, quantity, intended purpose, value, geographical origin, the time of production of goods or of rendering of the service, or other characteristics of goods or services; or
 - (c) the trademark where it is necessary to indicate the intended purpose of a good or service, in particular as accessories or spare parts.
3. Paragraph 2 shall only apply where the use made by the third party is in accordance with honest practices in industrial or commercial matters. Each Party may provide that a use under point (a) of paragraph 2 is only considered to be in accordance with honest practices in industrial or commercial matters if it relates to goods or services which are dissimilar to those of the earlier trademark.

Article 12.24

Revocation and invalidation of a trademark

1. Each Party shall provide that a trademark shall be liable to revocation if, within a continuous period of at least three years, the trademark has not been put to genuine use in the relevant territory in connection with the goods or services in respect of which it is registered, and there are no proper reasons for non-use. However, no person may claim that the proprietor's rights in a trademark should be revoked where, during the interval between expiry of the period of at least three years and filing of the application for revocation, genuine use of the trademark has been started or resumed. The commencement or resumption of use within a period of three months preceding the filing of the application for revocation, which began at the earliest on expiry of the continuous period of at least three years of non-use, shall, however, be disregarded where preparations for the commencement or resumption of use takes place only after the holder has been informed that the application for revocation may be filed.
2. A trademark shall also be liable to revocation if, after the date on which it was registered:
 - (a) in consequence of acts or inactivity of the proprietor, it has become the common name in the trade for a good or service in respect of which it is registered; or
 - (b) in consequence of the use made of it by the proprietor of the trademark or with his consent in respect of the goods or services for which it is registered, it is liable to

mislead the public, particularly as to the nature, quality or geographical origin of those goods or services.

3. The grounds for invalidation of a trademark may be determined by the laws of each Party.

Article 12.25

Bad faith applications

A trademark shall be liable to be declared invalid where the application for registration of the trademark was made in bad faith by the applicant. Each Party may provide that such a trademark shall not be registered.

SUB-SECTION 3

Designs

Article 12.26

Protection of registered designs

1. Each Party shall provide for the protection of independently created designs that are new or original⁵. This protection shall be provided by registration and shall confer an exclusive right upon their holders in accordance with this Sub-Section.
2. Each Party shall provide for the holder of a registered design to have the right at least to use it and to prevent third parties not having the holder's consent at least from using and notably making, offering for sale, selling, putting on the market, importing, exporting, stocking such a product or using articles bearing or embodying the protected design if such acts are undertaken for commercial purposes, unduly prejudice the normal exploitation of the design, or are not compatible with fair trade practice.
3. A design applied to or incorporated in a product which constitutes a component part of a complex product shall be granted design protection by each Party:
 - (a) if the component part, once it has been incorporated into the complex product, remains visible during normal use of the latter; and
 - (b) to the extent that those visible features of the component part fulfil in themselves the requirements pursuant to paragraph 1.
4. "Normal use" in point (a) paragraph 3 shall mean use by the end user, excluding maintenance, servicing or repair work.

⁵ The Parties agree that if the law of the EU so provides, the individual character of designs can also be required].

Article 12.27

Term of protection

Each Party shall provide that the duration of the protection available shall amount to at least ten years from the date of filing of the application. If a Party increases the duration of protection beyond 10 years, before or after the entry into force of this Agreement, the minimum duration of protection pursuant to the first sentence shall be set at that increased level of duration, which shall amount to at least 15 years.

Article 12.28

Exceptions and exclusions

1. Each Party may establish limited exceptions to the protection of designs, provided that such exceptions do not unreasonably conflict with the normal exploitation of protected designs and do not unreasonably prejudice the legitimate interests of the holder of the protected design, taking account of the legitimate interests of third parties.
2. Design protection shall not extend to designs dictated essentially by technical or functional considerations. In particular, a design right shall not subsist in features of appearance of a product which must necessarily be reproduced in their exact form and dimensions for the product in which incorporated or to which the design is applied to be mechanically connected to, or placed in, or around or contact with another product so that either product may perform its function.
3. By way of derogation from paragraph 2, a design may subsist in a design, which has the purpose of allowing the multiple assembly or connection of mutually interchangeable products within a modular system.

Article 12.29

Relationship to copyright

The Parties shall not prevent a design to be eligible for protection under the copyright law of a Party from the date on which the design was created or fixed in any form. The extent to which, and the conditions under which, such a protection is conferred, including the level of originality required, shall be determined by each Party.

SUB-SECTION 4

Geographical Indications

Article 12.30

Scope

This Sub-Section applies to the protection of geographical indications originating in the territories of the Parties.

Geographical indications of a Party which are to be protected by the other Party shall only be subject to this Sub-Section if covered by the scope of the legislation referred to in Article 12.31 (Procedures).

Article 12.31

Procedures

1. Having examined the legislation of Indonesia listed in Section A of Annex 12-A, the Union concludes that this legislation meets the elements laid down in Section B of Annex 12-A.
2. Having examined the Union legislation listed in Section A of Annex 12-A, Indonesia concludes that this legislation meets the elements laid down in Section B of Annex 12-A.
3. Following the completion of an opposition procedure in accordance with the criteria set out in Annex 12-B and an examination of the geographical indications of the Union listed in Annex 12-C, which have been registered by the Union under the legislation referred to in paragraph 2 as geographical indication complying with paragraph 1 of TRIPS Article 22, Indonesia shall protect those geographical indications according to the level of protection laid down in this Sub-Section.
4. Following the completion of an opposition procedure in accordance with the criteria set out in Annex 12-B and an examination of the geographical indications of Indonesia listed in Annex 12-C, which have been registered by Indonesia under the legislation referred to in paragraph 1 as geographical indication complying with paragraph 1 of TRIPS Article 22, the Union shall protect those geographical indications according to the level of protection laid down in this Sub-Section.

Article 12.32

Amendment of the List of Geographical Indications

The list of geographical indications to be protected in Annex [XX]-C may be amended by the Trade Committee in accordance with Article 24.2 (Functions of the Trade Committee) of Chapter 24 (Institutional Provisions)]. New geographical indications shall be added following the completion of the opposition procedure and their examination as referred to in paragraphs 3 or 4 of Article 12.31 (Procedures).

Article 12.33

Protection of Geographical Indications

1. Each Party shall ensure that the geographical indications listed in Annex 12-C shall be protected against:
 - (a) any direct or indirect commercial use of a protected name:
 - (i) for comparable products not compliant with the product specification of the protected name, or
 - (ii) in so far as such use exploits the reputation of a geographical indication;
 - (b) any misuse, imitation or evocation, even if the true origin of the product is indicated or if the protected name is translated, transcribed, transliterated or accompanied by an expression such as “style”, “type”, “method”, “as produced in”, “imitation”, “flavour”, “like” or similar, including when those products are used as an ingredient;
 - (c) any other false or misleading indication as to the origin, nature or essential qualities of the product, on the inner or outer packaging, advertising material or documents relating to the product concerned, and the packing of the product in a container liable to convey a false impression as to its origin, including when those products are used as an ingredient; and
 - (d) any other practice liable to mislead the consumer as to the true origin of the product.
2. Geographical indications listed in Annex 12-C shall not become generic in the territories of the Parties.
3. Nothing in this Agreement shall oblige a Party to protect a geographical indication of the other Party which is not, or ceases to be, protected in the territory of origin. Each Party shall notify the other Party if a geographical indication ceases to be protected in the territory of that Party of origin. Such notification shall take place in accordance with procedures laid down in Article 12.61 (Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property).
4. Nothing in this Agreement shall prejudice the right of any person to use, in the course of trade, that person’s name or the name of that person’s predecessor in business, except where such name is used in such a manner to mislead the public.

Article 12.34

Right of Use of Geographical Indications

1. Each Party shall provide that a name protected under this Agreement may be used by any operator marketing a product which conforms to the corresponding specification.
2. Each Party shall provide that once a geographical indication is protected under this Agreement, the use of such protected name shall not be subject to any registration of users or further charges.

Article 12.35

Relationship to Trademarks

1. Each Party shall, where a geographical indication is protected under this Sub-Section, refuse to register a trademark the use of which would contravene paragraph 1 of Article 12.33 (Protection of Geographical Indications), provided an application to register the trademark is submitted after the applicable date of protection of the geographical indication in the territory of the Party concerned.

Trademarks registered in breach of the first paragraph shall be invalidated.

2. For geographical indications referred to in Article 12.31 (Procedures), the applicable date of protection referred to in paragraph 1 shall be the date of entry into force of this Agreement.
3. For geographical indications referred to in Article 12.32 (Amendment of the List of Geographical Indications), the applicable date of protection referred to in paragraph 1 shall be the date of the transmission of a request to the other Party to protect a geographical indication.
4. The Parties shall protect geographical indications where a prior trademark exists. A prior trademark shall mean a trademark the use of which contravenes paragraph 1 of Article 12.33 (Protection of Geographical Indications) which has been applied for, registered or established by use, if that possibility is provided for by the legislation concerned, in good faith in the territory of one Party before the date on which the application for protection of the geographical indication is submitted by the other Party under this Agreement, which the proprietor of the prior trademark has right to use for the geographical indications according to the respective laws and regulations of a Party. Such trademark may continue to be used and renewed provided that no grounds for the trademark's invalidity or revocation exist in the legislation on trademarks of the Parties. In such cases, the use of the protected geographical indication shall be permitted as well as the use of the relevant trademarks.

Article 12.36

Enforcement of Protection

The Parties shall enforce the protection provided for in Articles 12.31 (Procedures) to 12.35 (Relationship to Trademarks) by appropriate administrative and judicial steps to prevent or stop the unlawful use of protected designations of origin and protected geographical indications. They shall also enforce such protection at the request of an interested party.

Article 12.37

Other Provisions

1. A Party shall not be required to protect a name as a geographical indication under this Sub-Section if that name conflicts with the name of a plant variety or an animal breed and as a result is likely to mislead the consumer as to the true origin of the product.
2. A Party shall not be required to protect a homonymous name which misleads consumers into believing that a product comes from another territory even if the name is accurate as far as the actual territory, region or place of origin of the product in question is concerned. Without prejudice to Article 23 of the TRIPS Agreement, the Parties shall mutually decide the practical conditions of use under which wholly or partially homonymous geographical indications will be differentiated from each other, taking into account the need to ensure equitable treatment of the producers concerned and that consumers are not misled.
3. If a Party, in the context of bilateral negotiations with a third party, proposes to protect a geographical indication of that third party which is wholly or partially homonymous with a geographical indication of the other Party protected under this Sub-Section, it shall inform the other Party thereof and give it an opportunity to comment before the third party's geographical indication becomes protected.
4. Any matter arising from product specifications of protected geographical indications shall be dealt with in the Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property referred to in Article 12.61 (Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property).
5. The protection of geographical indications protected under this Agreement may only be cancelled by the Party in which the product originates.
6. A product specification referred to in this Sub-Section shall be that approved, including any amendments also approved, by the authorities of the Party in the territory from which the product originates.

SUB-SECTION 5

Patents

Article 12.38

Patents

Subject to the provisions of paragraphs 2 and 3 of Article 27 of the TRIPS Agreement, each Party shall ensure at least adequate and effective patent protection for inventions in all fields of technology, provided that they are new, involve an inventive step and are capable of industrial application. Subject to paragraph 4 of Article 65, paragraph 8 of Article 70 and paragraph 3 of Article 27 of the TRIPS Agreement, each Party shall ensure that patents are available and patent rights enjoyable without discrimination as to the place of invention, the field of technology and whether products are imported or locally produced.

Article 12.39

Period of effective protection under a patent on medicinal products or on plant protection products

The Parties recognise that medicinal products or plant protection products protected by a patent in their respective territory may be subject to an administrative authorisation⁶ procedure before being put on their market. They acknowledge that the period that elapses between the filing of the application for a patent and the first authorisation to place the product on their respective market, as defined for that purpose by the relevant legislation, may shorten the period of effective protection under the patent.

SUB-SECTION 6

Protection of trade secrets⁷

Article 12.40

Scope of protection of trade secrets

⁶ The term “administrative authorisation” refers to the formal approval granted by regulatory authorities to allow the marketing of medicinal and plant protection products. This authorisation ensures that the product meets all necessary regulatory requirements, including safety and efficacy.

⁷ The terms “trade secret” and “undisclosed” information are interchangeable for the purposes of Article 40 and 41.

1. In fulfilling its obligation under paragraph 1 of Article 2 to comply with the TRIPS Agreement, and in particular paragraphs 1 and 2 of Article 39 of the TRIPS Agreement, each Party shall provide for appropriate civil judicial procedures and remedies for any trade secret holder to prevent, and obtain redress for, the acquisition, use or disclosure of a trade secret without the consent of the holder, whenever carried out in a manner contrary to honest commercial practices.
2. For the purposes of this Sub-section:
 - (a) “trade secret” means information that:
 - (i) is secret in the sense that it is not, as a body or in the precise configuration and assembly of its components, generally known among or readily accessible to persons within the circles that normally deal with the kind of information in question;
 - (ii) has commercial value because it is secret; and
 - (iii) has been subject to reasonable steps under the circumstances, by the person lawfully in control of the information, to keep it secret; and
 - (b) “trade secret holder” means any natural or legal person lawfully controlling a trade secret.
3. For the purposes of this Sub-section, at least the following conduct shall be considered contrary to honest commercial practices:
 - (a) the acquisition of a trade secret without the consent of the trade secret holder, whenever carried out by unauthorised access to, appropriation of, or copying of any documents, objects, materials, substances or electronic files, lawfully under the control of the trade secret holder, containing the trade secret or from which the trade secret can be deduced;
 - (b) the use or disclosure of a trade secret whenever carried out, without the consent of the trade secret holder, by a person who is found to meet any of the following conditions:
 - (i) having acquired the trade secret in a manner referred to in point (a);
 - (ii) being in breach of a confidentiality agreement or any other duty not to disclose the trade secret; or
 - (iii) being in breach of a contractual or any other duty to limit the use of the trade secret; or
 - (c) the acquisition, use or disclosure of a trade secret whenever carried out by a person who, at the time of the acquisition, use or disclosure, knew or ought, under the circumstances, to have known that the trade secret had been obtained directly or indirectly from another person who was using or disclosing the trade secret unlawfully within the meaning of point (b), including when a person induced another person to carry out the actions referred to in point (b).
4. Nothing in this Sub-section shall be understood as requiring any Party to consider any of the following conduct as contrary to honest commercial practices:

- (a) independent discovery or creation by a person of the relevant information;
- (b) reverse engineering of a product by a person who is lawfully in possession of it and who is free from any legally valid duty to limit the acquisition of the relevant information;
- (c) acquisition, use or disclosure of information required or allowed by the relevant domestic law; and
- (d) use by employees of their experience and skills honestly acquired in the normal course of their employment.

Article 12.41

Civil judicial procedures and remedies of trade secrets

1. Each Party shall ensure that the any person participating in the civil judicial proceedings referred to in paragraph 1 of Article 12.40 (Scope of protection of trade secrets) or who has access to documents which form part of those legal proceedings, is not permitted to use or disclose any trade secret or alleged trade secret which the competent judicial authorities have, in response to a duly reasoned application by an interested party, identified as confidential and of which they have become aware as a result of such participation or access.
2. In the civil judicial proceedings referred to in paragraph 1 of Article 12.40 (Scope of protection of trade secrets), each Party shall provide that its judicial authorities have the authority at least to:
 - (a) order provisional measures, as set out in their respective laws and regulations, to prevent the acquisition, use or disclosure of the trade secret in a manner contrary to honest commercial practices;
 - (b) order injunctive relief to prevent the acquisition, use or disclosure of the trade secret in a manner contrary to honest commercial practices;
 - (c) order the person that knew or ought to have known that he, she or it was acquiring, using or disclosing a trade secret in a manner contrary to honest commercial practices to pay the trade secret holder damages appropriate to the actual prejudice suffered as a result of such acquisition, use or disclosure of the trade secret;
 - (d) take specific measures to preserve the confidentiality of any trade secret or alleged trade secret produced in civil proceedings relating to the alleged acquisition, use and disclosure of a trade secret in a manner contrary to honest commercial practices; and
 - (e) impose sanctions on parties, or other persons subject to the court's jurisdiction for violation of judicial orders concerning the protection of a trade secret or alleged trade secret produced in that proceedings.
3. The Parties shall not be required to provide for the judicial procedures and remedies referred to in paragraph 1 of Article 12.40 (Scope of protection of trade secrets) if the conduct contrary to honest commercial practices is carried out, in accordance with their relevant law, to reveal misconduct, wrongdoing or illegal activity or for the purposes of protecting a legitimate interest recognised by relevant domestic law.

Article 12.42

Protection of data submitted to obtain an authorisation to put a medicinal product on the market

1. Each Party shall protect commercially confidential information submitted to obtain an authorisation to place medicinal products on the market (“marketing authorisation”) against disclosure to third parties, except where it is necessary to protect the public, or unless steps are taken to ensure that the information is protected against unfair commercial use.
2. Each Party shall provide that for a limited period of time to be determined by its domestic law, the authority responsible for the granting of a marketing authorisation does not accept any subsequent application for a marketing authorisation that relies on the results of pre-clinical tests or clinical trials submitted in the application to that authority for the first marketing authorisation without the explicit consent of the holder of the first marketing authorisation, unless international agreements recognised by both Parties provide otherwise.

Article 12.43

Protection of data submitted to obtain a marketing authorisation for a plant protection product

1. Each Party shall provide that for at least 10 years from the date of the first marketing authorisation to place a plant protection product on the market, the test or study reports submitted to obtain that first marketing authorisation are not used for the benefit of any other person who seeks to obtain a marketing authorisation for a plant protection product, without the explicit consent of the owner of the test or study reports, regardless of whether or not the test or study report has been made available to the public.
2. The test or study report protected under paragraph 1 should fulfil the following conditions:
 - (a) be necessary for the marketing authorisation or for an amendment of a marketing authorisation in order to allow the use on other crops; and
 - (b) be certified as compliant with the principles of good laboratory practice or of good experimental practice.
3. Each Party shall establish rules to avoid duplicative testing on vertebrate animals.

SUB-SECTION 7

Plant varieties

Article 12.44

Each Party shall protect plant variety rights consistent with the International Convention for the Protection of New Varieties of Plants adopted in Paris on 2 December 1961, as last revised in Geneva on 19 March 1991 (“1991 UPOV Act”), including the exceptions to the breeder’s right as referred to in Article 15(2) of that Convention⁸.

SECTION C

ENFORCEMENT OF INTELLECTUAL PROPERTY RIGHTS

Article 12.45

General provisions

1. The Parties affirm their commitments under the TRIPS Agreement and in particular of Part III thereof. The complementary measures, procedures and remedies to be provided by each Party under this Section are necessary to ensure the enforcement of intellectual property rights⁹. These measures, procedures and remedies shall be fair and equitable, and shall not be unnecessarily complicated or costly, or entail unreasonable time limits or unwarranted delays.
2. The measures, procedures and remedies referred to in paragraph 1 shall be effective, proportionate and dissuasive and shall be applied in such a manner as to avoid the creation of barriers to legitimate trade and to provide for safeguards against their abuse.
3. This Section is without prejudice to the enforcement mechanisms, if any, for Genetic Resources, Traditional Knowledge and Traditional Cultural Expression provided by the respective laws of the Parties.
4. Each Party shall endeavour to enhance the fight against counterfeiting and piracy.

⁸ For greater certainty, this provision shall not affect the registration of local plant varieties under the laws and regulations in Indonesia outside the scope of the 1991 UPOV Act.

⁹ For the purposes of this Section the term “intellectual property rights” shall include at least the following rights: copyright; rights related to copyright; rights of the creator of the topographies of a semiconductor product; trademark rights; design rights; patent rights; geographical indications; utility model rights; plant variety rights; trade names in so far as these are protected by each Party.

Article 12.46

Persons entitled to apply for the application of the measures, procedures and remedies

Each Party shall recognise as persons entitled to seek application of the measures, procedures and remedies referred to Section C of this Chapter and in Part III of the TRIPS Agreement:

- (a) the holders of intellectual property rights in accordance with the provisions of the applicable law;
- (b) all other persons authorised to use those intellectual property rights, in particular licensees, in so far as permitted by and in accordance with the provisions of the applicable law;
- (c) intellectual property collective rights management bodies which are regularly recognised as having a right to represent holders of intellectual property rights, in so far as permitted by and in accordance with the provisions of the applicable law; and
- (d) professional defence bodies which are regularly recognised as having a right to represent holders of intellectual property rights, in so far as permitted by and in accordance with the provisions of the law.

Sub-Section 1

Civil and Administrative Enforcement

Article 12.47

Evidence

1. Each Party shall ensure that, even before the commencement of proceedings on the merits of the case, the competent judicial authorities may, on application by a party which has presented reasonably available evidence to support his claims that his intellectual property right has been infringed or is about to be infringed, order prompt and effective provisional measures to preserve relevant evidence in respect of the alleged infringement, subject to the protection of confidential information.
2. Such measures may include the detailed description, with or without the taking of samples, or the physical seizure of the alleged infringing goods, and, in appropriate cases, the materials and implements used in the production and/or distribution of these goods and the documents relating thereto.
3. Each Party shall take the measures necessary, in cases of infringement of an intellectual property right committed on a commercial scale, to enable the competent judicial authorities to order, where appropriate, on application by a party, the communication of

banking, financial or commercial documents under the control of the opposing party, subject to the protection of confidential information.

Article 12.48

Right of Information

1. Each Party shall ensure that, in the context of proceedings concerning an infringement of an intellectual property right and in response to a justified and proportionate request of the claimant, the competent judicial authorities may order the infringer or any other person which is party to a litigation or a witness therein to provide information on the origin and distribution networks of the goods or services which infringe an intellectual property right.
 - (a) “any other person” in this paragraph means a person who was:
 - (i) found in possession of the infringing goods on a commercial scale;
 - (ii) found to be using the infringing services on a commercial scale;
 - (iii) found to be providing on a commercial scale services used in infringing activities; or
 - (iv) indicated by the person referred to in points (i) to (iii) as being involved in the production, manufacture or distribution of the infringing goods or the provision of the infringing services.
 - (b) the information referred to in this paragraph shall, as appropriate, comprise:
 - (i) the names and addresses of the producers, manufacturers, distributors, suppliers and other previous holders of the goods or services, as well as the intended wholesalers and retailers; or
 - (ii) information on the quantities produced, manufactured, delivered, received or ordered, as well as the price obtained for the goods or services in question.
2. This Article shall apply without prejudice to other statutory provisions which:
 - (a) grant the right holder rights to receive fuller information;
 - (b) govern the use in civil or criminal proceedings of the information communicated pursuant to this Article;
 - (c) govern responsibility for misuse of the right of information;
 - (d) afford an opportunity for refusing to provide information which would force the person referred to in paragraph 1 to admit his own participation or that of his close relatives in an infringement of an intellectual property right; or

- (e) govern the protection of confidentiality of information sources or the processing of personal data.

Article 12.49

Provisional and precautionary measures

1. Each Party shall ensure that the judicial authorities may, at the request of the applicant, issue against the alleged infringer a provisional measure intended to prevent any imminent infringement of an intellectual property right, or to forbid, on a provisional basis and subject, where appropriate, to a recurring penalty payment where provided for by domestic law, the continuation of the alleged infringements of that right, or to make such continuation subject to the lodging of guarantees intended to ensure the compensation of the right holder. A provisional measure may also be issued, under the same conditions, against an intermediary whose services are being used by a third party to infringe an intellectual property right. For the purposes of this Article, “intermediaries” include internet service providers.
2. A provisional measure may also be issued to order the seizure or delivery up of goods suspected of infringing an intellectual property right, so as to prevent their entry into or movement within the channels of commerce.
3. In the case of an alleged infringement committed on a commercial scale, the Parties shall ensure that, if the applicant demonstrates circumstances likely to endanger the recovery of damages, the judicial authorities may order the precautionary seizure of the movable and immovable property of the alleged infringer. To that end, the judicial authorities may order the communication of bank, financial or commercial documents, or appropriate access to the relevant information.

Article 12.50

Remedies

1. Each Party shall ensure that the judicial authorities may order, at the request of the applicant and without prejudice to any damages due to the right holder by reason of the infringement, and without compensation of any sort, the destruction or at least the definitive removal from the channels of commerce, of goods that they have found to infringe an intellectual property right. If appropriate, the judicial authorities may also order the destruction of materials and implements predominantly used in the creation or manufacture of those goods.
2. The competent judicial authorities of each Party shall have the authority to order that those measures be carried out at the expense of the infringer, unless particular reasons are invoked for not doing so.
3. In considering a request for remedies, the need for proportionality between the seriousness of the infringement and the remedies ordered as well as the interests of third parties shall be taken into account.

Article 12.51

Injunctions

Each Party shall ensure that, when a judicial decision finds an infringement of an intellectual property right, the competent judicial authorities may issue against the infringer as well as against an intermediary whose services are being used by a third party to infringe an intellectual property right an injunction aimed at prohibiting the continuation of the infringement.

Article 12.52

Alternative measures

Each Party may provide that the judicial authorities, in appropriate cases and upon request of the person liable to be subject to the measures provided for in Article 12.50 (Remedies) or Article 12.51 (Injunctions), may order pecuniary compensation to be paid to the injured party instead of applying the measures provided for in Article 12.50 (Remedies) or Article 12.51 (Injunctions), if that person acted unintentionally and without negligence, if execution of the measures in question would cause him disproportionate harm and if pecuniary compensation to the injured party appears reasonably satisfactory.

Article 12.53

Damages

1. Each Party shall ensure that the judicial authorities, on application of the injured party, order the infringer who knowingly, or with reasonable grounds to know, engaged in an infringing activity, to pay the right holder damages appropriate to the actual prejudice suffered by him or her as a result of the infringement. When the judicial authorities set the damages:
 - (a) they shall take into account all appropriate aspects, such as the negative economic consequences, including lost profits, which the injured party has suffered, any unfair profits made by the infringer and, in appropriate cases, elements other than economic factors, such as the moral prejudice caused to the right holder by the infringement; or
 - (b) as an alternative to (a), they may, in appropriate cases, set the damages as a lump sum on the basis of elements such as the amount of royalties or fees which would have been due if the infringer had requested authorisation to use the intellectual property right in question.
2. Where the infringer did not knowingly, or with reasonable grounds to know, engages in infringing activity, each Party may lay down that the judicial authorities may order in favour of the injured party the recovery of profits or the payment of damages which may be pre-established.

Article 12.54

Legal costs

Each Party shall ensure that reasonable and proportionate legal costs and other expenses incurred by the successful party shall as a general rule be borne by the unsuccessful party, unless equity does not allow this.

Article 12.55

Publication of judicial decisions

Each Party shall ensure that, in legal proceedings instituted for infringement of an intellectual property right, the competent judicial authorities may order, at the request of the applicant and at the expense of the infringer, appropriate measures for the dissemination of the information concerning the decision, including displaying the decision and publishing it in full or in part.

Article 12.56

Presumption of authorship or ownership

The Parties recognise that, for the purposes of applying the measures, procedures and remedies provided for in this Section:

- (a) for the author of a literary or artistic work, in the absence of proof to the contrary, to be regarded as such, and consequently to be entitled to institute infringement proceedings, it shall be sufficient for his or her name to appear on the work in the usual manner; and
- (b) point (a) shall apply *mutatis mutandis* to the holders of rights related to copyright with regard to their protected subject matter.

Article 12.57

Administrative procedures

To the extent that any civil remedy can be ordered as a result of administrative procedures on the merits of a case, such procedures shall conform to principles equivalent in substance to those set forth in the relevant provisions of this Section.

Article 12.58

Voluntary stakeholder initiatives

Each Party shall endeavour to facilitate voluntary stakeholder initiatives to reduce intellectual property rights infringement, including online and in other marketplaces, focusing on concrete problems and seeking practical solutions that are realistic, balanced, proportionate and fair for all concerned including in the following ways:

- (a) each Party shall endeavour to consensually convene stakeholders in its territory to facilitate voluntary initiatives to find solutions and resolve differences regarding the protection and enforcement of intellectual property rights with the aim of reducing infringement;
- (b) the Parties shall endeavour to exchange information with each other regarding efforts to facilitate voluntary stakeholder initiatives in their respective territories; and
- (c) the Parties shall endeavour to promote open dialogue and cooperation among the Parties' stakeholders, and to encourage the Parties' stakeholders to jointly find solutions and resolve differences regarding the protection and enforcement of intellectual property rights and reducing infringement.

SECTION D

BORDER ENFORCEMENT

Article 12.59

Border enforcement measures related to intellectual property rights

1. In implementing border measures for the enforcement of intellectual property rights by customs, whether or not covered by this Agreement, each Party shall ensure consistency with its obligations under the GATT and TRIPS Agreements.
2. With respect to goods under customs control, each Party shall adopt or maintain procedures to enable a right holder, who suspects that goods infringe trademarks, copyrights and related rights, geographical indications, patents, utility models, industrial designs, topographies of integrated circuits and plan variety rights, to lodge an application in writing with the competent authorities for the suspension by the custom authorities based on the information received, of the release into free circulation or the detention of such goods. The competent authorities shall take action on such application provided the requirement in the respective laws are met. For purposes of this Section, unless otherwise specified, "competent authorities" may include the appropriate judicial, administrative, or law enforcement authorities under a Party's law.
3. Each Party shall have in place an electronic system for the management of the applications granted or recorded by customs authorities, in which:
 - a. customs authorities shall decide about granting or recording applications within a reasonable period of time from the submission of the application; and
 - b. applications can apply for multiple shipments.

This paragraph is without prejudice to any future technological developments for the improvement of the systems and procedures.

4. With respect to goods under customs control, each Party shall ensure that customs authorities may act upon their own initiative to suspend the release of or detain goods suspected of infringing an intellectual property right under the respective law of each Party.
5. Each Party shall ensure that customs authorities use risk analysis to identify suspect goods.
6. Each Party may have in place procedures allowing for the destruction of goods infringing intellectual property rights, according to the national laws of the Parties, without there being any need to prior administrative or judicial proceedings for the formal determination of the infringements, where the persons concerned agree or do not oppose to the destruction. In case goods determined to be infringing intellectual property rights are not destroyed, each Party shall ensure that, except in exceptional circumstances, such goods are disposed of outside the commercial channel in such a manner to avoid any harm to the right holder.
7. A Party may decide not to apply this Article to the import of goods put on the market in another country by or with the consent of the right holders.
8. A Party may exclude from the application of this Article goods of a non-commercial nature contained in travellers' personal luggage or sent in small consignments. Each Party may have in place procedures allowing for the swift destruction of counterfeit trade mark and pirated goods sent in postal or express couriers' consignments.
9. The customs authorities of each Party shall maintain a regular dialogue and promote cooperation with the relevant stakeholders and with other authorities involved in the enforcement of the intellectual property rights referred to in paragraph 1.
10. The Parties shall cooperate in respect of international trade in goods suspected of infringing intellectual property rights and, in particular, to share information on such trade.
11. Without prejudice to other forms of cooperation, the mutual assistance provided for in the Protocol on Mutual Administrative Assistance in Customs Matters shall apply with regard to breaches of legislation on intellectual property rights referred to in paragraph 1, for the enforcement of which the customs authorities are competent in accordance with this Article.
12. The Committee on Trade in Goods, Customs matters, and Sanitary and Phytosanitary matters in its configuration for rules of origin and origin procedures, customs and trade facilitation, and intellectual property for issues related to border enforcement referred to in Article 24.4 (Specialised committees)] of Chapter 24 (Institutional Provisions), shall be responsible for ensuring the proper functioning and implementation of this Article, in particular providing for the framework for organising cooperation.

SECTION F

FINAL PROVISIONS

Article 12.60

Cooperation and transparency

1. The Parties shall cooperate with a view to supporting implementation of the commitments and obligations undertaken under this Chapter.
2. The Parties shall draw on the following modalities, among others, with respect to cooperation on intellectual property rights protection and enforcement matters. The areas of cooperation include the following activities:
 - (a) the exchange of information on the legal framework concerning intellectual property rights and relevant rules of protection and enforcement;
 - (b) the exchange of experience between the Parties on legislative progress;
 - (c) the exchange of experience between the Parties on the enforcement of intellectual property rights;
 - (d) the exchange of experiences between the Parties on enforcement at central and sub-central level by customs, police, administrative and judiciary bodies;
 - (e) coordination to prevent exports of counterfeit goods, including with other countries;
 - (f) technical assistance, capacity building; exchange and training of personnel;
 - (g) the exchange of information and experience on intellectual property related aspects of genetic resources, traditional knowledge and traditional cultural expressions;
 - (h) the exchange of information and experience on the period of effective protection under a patent on medicinal products or on plant protection products;
 - (i) the protection and defence of intellectual property rights and the dissemination of information in this regard in, inter alia, business circles and civil society;
 - (j) public awareness of consumers and right holders; enhancement of institutional cooperation, particularly between the intellectual property offices;
 - (k) actively promoting awareness and education of the general public on policies concerning intellectual property rights;

- (l) regarding public-private collaboration engaging with SMEs, including at SME-focused events or gatherings, regarding protecting and enforcing intellectual property rights and reducing infringement; and
 - (m) the formulation of effective strategies to identify audiences and communication programmes to increase consumer and media awareness on the impact of intellectual property violations, including the risk to health and safety and the connection to organised crime.
3. Each Party may make publicly available the product specifications, or a summary thereof, and relevant contact points for control or management of geographical indications of the other Party protected pursuant to Sub-Section 4 (Geographical Indications).
 4. The Parties shall, either directly or through the Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property referred to in Article 12.61 (Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property), maintain contact on all matters related to the implementation and functioning of this Agreement.

Article 12.61

Specialised Committee on Services, Investment, Digital Trade, Government Procurement,
Intellectual Property

[

1. This Article complements and further specifies Article 24.4 (Specialised Committees)] of Chapter 24 (Institutional Provisions).
2. The Specialised Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property, shall, with respect to this Chapter, see to the proper functioning of this Chapter and may consider any matter related to its implementation and operation.
3. The [...] may in accordance with Article 24.2 of Chapter 24 (Institutional Provisions):
 - (a) amend Section A of Annex 12-A as regards the references to the law applicable in the Parties;
 - (b) amend Section B of Annex 12-A as regards the elements for registration and control of geographical indications;
 - (c) amend Annex 12-B as regards the criteria to be included in the objection procedure;
or
 - (d) modify Annex 12-C as regards the listed geographical indications.